

CHAPTER 56.

An Act to amend the law with respect to Customs
in the Isle of Man. [31st July 1925.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the same,
as follows :—

1. The additional duties of Customs on tobacco removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1918, shall continue to be charged, levied and paid as from the first day of July, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six: Duties on tobacco.
8 & 9 Geo. 5.
c. 41.

Provided that in the case of the duties charged under this section the preferential rate under section five of the Isle of Man (Customs) Act, 1919, (which relates to Imperial preference) shall be three-fourths of the full rate. 9 & 10 Geo. 5.
c. 74.

2. There shall be charged, levied and paid on and from the ninth day of June, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, such additional duties of Customs on ale or beer removed or imported into the Isle of Man as shall be sufficient to make when added to the existing duties a duty at the following rate: Duties on
ale or beer,

For every thirty-six gallons, where the worts
were before fermentation of a specific
gravity of 1,055 degrees, a duty of - - 3*l.* 14*s.*
with a proportionate increase or decrease according to the
specific gravity of the worts thereof before fermentation.

3. The additional duties of Customs on spirits removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1921, shall continue to be charged, levied and paid as from the first day of August, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six. Duties on
spirits.
11 & 12 Geo
5. c. 40.

4. The duties of Customs on cocoa removed or imported into the Isle of Man imposed by the Isle of Man (Customs) Act, 1924, shall continue to be charged, levied and paid as from the first day of August, nineteen Duties on
cocoa.
14 & 15 Geo.
5. c. 24.

hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six.

Duties on
hops.

5.—(1) On and from the sixteenth day of August, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, there shall be charged, levied and paid on the following goods (not being goods grown or manufactured in Great Britain or Northern Ireland) removed or imported into the Isle of Man the following duties of Customs, that is to say:—

	£	s.	d.
Hops - - - the cwt.	4	0	0
Every extract, essence or other similar preparation made from hops.	An amount equal to the duty on the quantity of hops which, in the opinion of the Commissioners of Customs and Excise, has been used in the manufacture of the extract, essence or preparation.		

9 & 10 Geo.
5. c. 32.

(2) In the case of any goods to which this section applies, shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from and grown, produced or manufactured in the British Empire, the rate of duty shall be two-thirds of the full rate, and the provisions of subsections (1) and (2) of section eight of the Finance Act, 1919, shall apply with respect to the preferential rates referred to in this section as they apply with respect to the preferential rates referred to in that section as though those provisions were herein set out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

Duties on
motor cars,
musical
instruments,
clocks, films,
&c.

6.—(1) On and from the first of July, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, there shall be charged, levied and paid on any of the following articles (not being articles manufactured or produced in Great Britain or

Northern Ireland) removed or imported into the Isle of Man the following duties of Customs, that is to say :—

Motor cars, including motor bicycles and motor tricycles - - -	} An amount equal to thirty-three and one-third per cent. of the value of the article.
Accessories and component parts of motor cars, motor bicycles, or motor tricycles other than tyres -	
Musical instruments, including gramophones, pianolas, and other similar instruments - - -	
Accessories and component parts of musical instruments, and records and other means of reproducing music - - - - -	
Clocks, watches, and the component parts of clocks and watches - -	

Cinematograph films imported for the purpose of the exhibition of pictures or other optical effects by means of a cinematograph or other similar apparatus :—

	Per linear foot of the standard width of 1 $\frac{3}{8}$ inches. £ s. d.		
Blank film, on which no picture has been impressed, known as raw film or stock - - - -	0	0	0 $\frac{1}{3}$
Positives, <i>i.e.</i> , films containing a picture for exhibition, whether developed or not - - -	0	0	1
Negatives, <i>i.e.</i> , films containing a photograph, whether developed or not, from which positives can be printed - - - - -	0	0	5

(2) Where it is proved to the satisfaction of the Commissioners of Customs and Excise that any article is of a kind mainly used as an accessory or component part which is liable to duty under this section, but is imported for use for some other purpose or has been or is being exclusively used for some other purpose, the Commissioners shall, subject to such conditions, if any, as they think fit to impose, allow the article to be

imported free of duty or repay any duty paid on importation as the case requires.

(3) Motor cars which are proved to the satisfaction of the Commissioners of Customs and Excise to be constructed and adapted for use and intended to be used solely as motor omnibuses or motor ambulances, or in connection with the conveyance of goods or burden in the course of trade or husbandry, or by a local authority as fire engines or otherwise for the purposes of their fire brigade service, and chassis, component parts and accessories which are so proved to be intended to be used solely for any such motor cars shall not be charged with duty under this section :

Provided that, in such cases as the Commissioners of Customs and Excise direct, cars, chassis, accessories or parts, as the case may be, shall not be exempted unless they are marked or stamped in such manner as the Commissioners direct or approve with some distinctive stamp or mark showing that they are only to be so used.

On any transfer of a motor car or chassis which has been exempted under this provision the transferor shall give notice of the transfer and of the name and address of the transferee to the Commissioners of Customs and Excise.

If, while the duty on motor cars, motor bicycles and motor tricycles, and accessories and component parts thereof under this section remains in force, any person obliterates or removes any such distinctive stamp or mark, or uses any motor car, chassis, accessory or part which has been exempted from duty under this provision for any purpose other than the purposes therein mentioned, or fails to give notice of a transfer in accordance with this provision, he shall be liable on conviction for the offence, prosecuted in the manner in which offences punishable on summary conviction may for the time being be prosecuted in the Isle of Man, to a fine not exceeding one hundred pounds, or, at the option of the court, to imprisonment, with or without hard labour, for a term not exceeding six months.

If it is shown to the satisfaction of the Commissioners of Customs and Excise that any motor car, chassis, component part or accessory has been, and is being, exclusively used for purposes which entitle it to an exemption from duty under this provision, the Com-

missioners may, subject to such conditions (if any) as they think fit to impose, repay any duty paid on the car, chassis, part or accessory on importation.

(4) If it is proved to the satisfaction of the Commissioners of Customs and Excise as respects any imported negative cinematograph film, whether developed or undeveloped, that the production of the film was organised by persons whose chief or only place of business was in Great Britain or Northern Ireland, and that the producer of the film and all the principal actors and artists employed for the production thereof except five, or, if the total number of the principal actors and artists was less than twenty, not less than three-quarters of the principal actors and artists so employed, were British subjects and domiciled in Great Britain or Northern Ireland, that film shall, subject to compliance with such conditions as the Commissioners may by regulations prescribe, be treated for the purpose of the duties charged by this section on imported cinematograph films as being blank film.

In this provision the expression "artists" includes the person working the photographic camera by means of which the pictures composing the film were taken.

(5) The Lieutenant-Governor of the Isle of Man may by order exempt any articles mentioned in the order which are liable to duty under this section from that duty if he is satisfied that, having regard to the small value of the article, it is inexpedient that the duty should be charged.

(6) The Lieutenant-Governor of the Isle of Man may make regulations providing for the total or partial exemption for a limited period from duty under this section of any motor cars, including motor bicycles and motor tricycles, brought into the Isle of Man by persons making only a temporary stay therein.

(7) In the case of any article to which this section applies, shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from, and produced or manufactured in the British Empire, the rate of duty shall be two-thirds of the full rate, and the provisions of subsections (1) and (2) of section eight of the Finance Act, 1919, shall apply with respect to the preferential rates referred to in this section as they apply with respect to the preferential rates referred to in that section, as though those provisions were herein set

out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

Duties on
silk.

7.—(1) On and from the first day of July, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, there shall be charged, levied, and paid on the removal or importation into the Isle of Man of the articles specified in the first column of Part I. of the Schedule to this Act respectively the duties of Customs specified in the second column of the said Part I., but subject to the provisions contained in Part II. of the said Schedule.

(2) In the case of any article to which this section applies, shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from, and produced or manufactured in the British Empire, the rate of duty shall be five-sixths of the full rate, and the provisions of subsections (1) and (2) of section eight of the Finance Act, 1919, shall apply with respect to the preferential rates referred to in this section as they apply with respect to the preferential rates referred to in that section as though those provisions were herein set out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade, and with the substitution of the Isle of Man for Great Britain or Northern Ireland.

Duties on
wine.

8.—(1) On and from the ninth day of June, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, there shall be charged, levied and paid on wine removed or imported into the Isle of Man the following duties of Customs, that is to say:—

	<i>s.</i>	<i>d.</i>
Wine not exceeding 30 degrees of proof spirit, the gallon - - - -	2	6
Exceeding 30, but not exceeding 42 degrees of proof spirit, the gallon - - - -	6	0
For every degree or part of a degree beyond the highest above charged, an additional duty, the gallon - - - -	0	6
Sparkling wine imported in bottle, an additional duty, the gallon - - - -	12	6
Still wine imported in bottle, an additional duty, the gallon - - - -	2	0

(2) Subsection (2) of section eight of the Customs and Inland Revenue Act, 1890 (which provides that wine rendered sparkling in warehouse is to be deemed to be sparkling wine for the purpose of a certain duty of Customs imposed on sparkling wine), shall apply for the purpose of the duty imposed on sparkling wine by this section as it applied for the purpose of the duty mentioned in that subsection. 53 & 54 Vict.
c. 8.

(3) Section five of the Isle of Man (Customs) Act, 1919 (which relates to Imperial preference), shall apply to the duties chargeable under this section :

Provided that as from the first day of July, nineteen hundred and twenty-five, the preferential rate of duty in the case of wine exceeding 30 degrees of proof spirit shall be thirty-three and a third per cent. of the full rate, and in the case of sparkling wine in bottle (additional duty) shall be fifty per cent. of the full rate.

(4) In this section the expression "wine" includes lees of wine.

9.—(1) On and from the first day of July, nineteen hundred and twenty-five, until the first day of August, nineteen hundred and twenty-six, there shall be charged, levied and paid a duty of Customs equal to thirty-three and a third per cent. of the value of the goods on the removal or importation into the Isle of Man of any of the following goods (not being goods manufactured in Great Britain or Northern Ireland), that is to say :— Duties on
lace.

Lace of cotton, silk, or other fibre, whether made by hand or machine ;

Products (not being solid fabrics) of the machines known as the Leaver's lace machine, the lace curtain machine, the lace net machine, or the circular lace machine ;

Embroidery manufactured on net or any fabric which, or the main part of which, is eliminated before the article reaches its final stage.

(2) In the case of any goods to which this section applies shown to the satisfaction of the Commissioners of Customs and Excise to have been consigned from, and produced or manufactured in the British Empire, the rate of duty shall be two-thirds of the full rate, and the provisions of subsections (1) and (2) of section eight of

the Finance Act, 1919, shall apply with respect to the preferential rates referred to in this section as they apply with respect to the preferential rates referred to in that section as though those provisions were herein set out and in terms made applicable to the rates referred to in this section, with the substitution of the Lieutenant-Governor of the Isle of Man for the Board of Trade.

Definition of
value for
purposes of
ad valorem
duties.

10.—(1) The value of any article for the purposes of sections six, seven and nine of this Act shall be taken to be the price which an importer would give for the article if the article were delivered freight and insurance paid in bond at the port of importation in Great Britain or Northern Ireland, or, in the case of importation direct into the Isle of Man from outside Great Britain or Northern Ireland, at the port of importation into the Isle of Man. Duty shall be paid on that value as fixed by the Commissioners of Customs and Excise:

Provided that, in the case of a motor car (including a motor bicycle and a motor tricycle) imported with tyres attached, the value of the tyres shall be deducted from the value of the car for the purpose of the charge of duty.

(2) Any dispute arising as to the proper rate of duty payable under this section shall, so far as the question of value is concerned, be referred to a referee appointed by the Lieutenant-Governor of the Isle of Man, and the decision of the referee shall be final and conclusive.

21. If the decision of the referee involves any variation in the amount of duty payable, duty shall be paid or repaid, as the case may be, so as to correspond with that decision.

39 & 40 Vict.
c. 36.

Sections thirty and thirty-one of the Customs Consolidation Act, 1876, shall, as respects any such dispute as to value, have effect as if an application for reference to a referee under this provision were substituted for the action or suit mentioned in those sections.

Short title.

11. This Act may be cited as the Isle of Man (Customs) Act, 1925.

SCHEDULE.**PART I.****DUTIES ON SILK AND ARTIFICIAL SILK.**

Section 7.

Article.	Amount of duty.
SILK :	
Cocoons and waste of all kinds—	<i>s. d.</i>
Undischarged - - - - - the lb.	1 0
Wholly or in part discharged other than noils - - - - - „ „	3 0
Noils - - - - - „ „	1 0
Raw—	
Undischarged - - - - - „ „	3 0
Wholly or in part discharged - - „ „	4 4
Yarn—	
Undischarged - - - - - „ „	4 8
Wholly or in part discharged—	
Not being noil yarn - - - - - „ „	6 8
Noil yarn - - - - - „ „	1 5
Tissues—	
Undischarged - - - - - „ „	5 3
Wholly or in part discharged—	
Noil tissue - - - - - „ „	1 7
Tissue known as habutai not dyed or printed - - - - - „ „	6 6
Other tissues - - - - - „ „	7 9
ARTIFICIAL SILK :	
Waste - - - - - „ „	1 0
Singles yarn and straw - - - - - „ „	2 0
Doubled or twisted thread advanced be- yond the stage of singles yarn - - „ „	3 0
Tissues - - - - - „ „	3 6

**ANY OTHER ARTICLES MADE WHOLLY OR
IN PART OF SILK OR ARTIFICIAL SILK :**

Where the article is made wholly of silk or artificial silk, or where the value of the silk or artificial silk component exceeds twenty per cent. of the aggregate of the values of all the components of the article.

An amount equal to thirty - three and one-third per cent. of the value of the article.

Article.	Amount of duty.
Where the value of the silk or artificial silk component exceeds five per cent., but does not exceed twenty per cent. of the aggregate of the values of all the components of the article.	An amount equal to ten per cent. of the value of the article.
Where the value of the silk or artificial silk component does not exceed five per cent. of the aggregate of the values of all the components of the article.	An amount equal to two per cent. of the value of the article.

PART II.

PROVISIONS AS TO DUTIES.

1. In calculating for the purpose of any duty the weight of any yarn or tissue the weight of any fibres other than silk or artificial silk or of any waterproofing materials in the yarn or tissue shall be excluded.

2. Where the weight of the moisture contained in any raw silk or silk yarn exceeds eleven per cent. of the weight of the article, any duty payable in respect thereof shall be decreased by one per cent. of the amount of the duty for every one per cent. of moisture contained in the article in excess of eleven per cent.

3. Where any article chargeable with a duty under this Schedule is also chargeable with a duty under section six of this Act, the duty under this Schedule shall not be charged except in so far as the amount thereof exceeds the amount of the duty charged under the said section three.

4. Where any article chargeable under this Schedule with a duty equal to a percentage of the value of the article is also chargeable with the duty on lace imposed by this Act, the value of the lace in the article shall be excluded in computing the value of the article for the purpose of the duty under this Schedule, and where any article chargeable with duty under this Schedule as a tissue is also chargeable with the duty on lace imposed by this Act, the duty under this Schedule shall not be charged except in so far as the amount thereof exceeds the amount of the lace duty.

5. Where a specified amount of duty is charged in respect of a specific weight of an article the amount of duty shall be increased or decreased proportionately in the case of any greater or less weight.

6. In this Schedule, unless the context otherwise requires, the following expressions have the meaning hereby assigned to them respectively, that is to say:—

“Tissues” includes tissues of all kinds and of any width, whether woven or knitted;

“Discharged” means “from which the gum has been removed”;

“Silk yarn” means thrown or spun silk, silk yarn and silk threads of all kinds;

“Artificial silk yarn” means artificial silk yarn, thread and straw.

CHAPTER 57.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and twenty-six, and to appropriate the Supplies granted in this Session of Parliament.

[7th August 1925.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

GRANT OUT OF CONSOLIDATED FUND.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom, and apply towards making good the supply granted to His Majesty for the service of

Issue of
£254,772,058
out of the
Consolidated
Fund.